TROTS INVESTMENTS (PVT) LTD

versus

NYAMUNHU DAKARAI LAZARUS MAMBIRO

(In his capacity as Executor of the late Lazarus Mambiro
t/a Mambiro Fibre and Timber Industries)

And

SCHWEGMANN FAMILY TRUST

HIGH COURT OF ZIMBABWE
MPOKISENG DUBE J
BULAWAYO, 4th, 13th & 16th June 2025 & 24th April 2026

Summons for ejectment from commercial premises

Adv. M. Ndlovu for the plaintiff
Mr N. Mazibuko for the defendant

Introduction.

MPOKISENG DUBE J: Plaintiff issued a summons on the 17th January 2011 seeking relief in the form of *rei vindicatio* to eject the defendant from its industrial premise described as No.9 Welbeck Road, Thorngrove, Bulawayo, currently in the possession of the 1st defendant. The dispute was initially between plaintiff and a company known as Mambiro Fibre and Timber Industries duly represented by the current 1st defendant's father, one Samuel Mambiro. The then defendant entered appearance to defend and requested for further particulars. When such particulars were furnished the defendant filed its plea and counter claim. The defendant basically disputed being a tenant of the plaintiff, but instead of one Edwin Eric Schwegmann and later an entity known as the Schwegmann Family Trust. The defendant claimed to be a statutory tenant who had paid all its rentals up to date and thus entitled to a three months' notice. The defendant averred that the notice given to it was insufficient and disputed that the plaintiff wanted the premises for its own use. It simultaneously filed a counter claim joining in the Schwegmann Family Trust. It claimed a right of first refusal as given to it by Edwin Eric Schwegmann and later orally by the Schwegmann Family Trust, still being represented by Edwin Eric Schwegmann.

As the dispute dragged on Mambiro Senior passed on. He was duly substituted with the current defendant in his official capacity as the executor to Mambiro senior's estate. At some point plaintiff through its counsel made overtures towards settlement. Plaintiff specifically gave the defendant the right of first refusal as claimed by it in the counter claim. The defendant rebuffed those overtures, contending that the plaintiff cannot make such an offer as its acquisition of title is hotly contested. It was argued that the correct entity to give the offer was The Schwegmann Family Trust. Such was not possible as the Trust no longer held title over the property. Through correspondence exchanged, counsel for the defendant argued that the correct way forward would be for the plaintiff to relinquish title to The Schwegmann Family Trust, who should then make the offer. Despite assurances by plaintiff's erstwhile counsel that they represented both the plaintiff and the Trust and are able to pass transfer, the defendant refused to budge. With no meeting of the minds the offer lapsed unaccepted. Those overtures failed.

Curiously, the defendant continued to pay rentals, and the plaintiff continued to accept them.

When the matter was set down for trial, the parties agreed that the facts were common cause. It is the legal interpretation of such facts that set them apart. They agreed to proceed by way of a stated case per Rule 52 of the High Court Rules, 2021. Accordingly, they executed a statement of agreed facts, which are as follows:

> "WHEREAS the Plaintiff instituted summons for eviction against the Defendant in the main matter seeking an order for confirmation of the Notice to vacate dated the 15th of October 2010. In the said summons, the Plaintiff also sought an order of eviction against the Defendant from number 9 Welbeck Road, Thorngrove, Bulawayo, with an order of costs.
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> AND WHEAREAS On the 11th of August 2011, the Defendant filed a plea against the Plaintiff's claims and filed a Counter-claim against the Plaintiff and 2nd Counter Defendant declaring the sale of No.9 Welbeck Road, Thorngrove, Bulawayo by 2nd Counter- Defendant a violation of its right of first refusal and for the transfer to be cancelled and Defendant offered the property at the same price paid by the Plaintiff.
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> AND WHEREAS, with the matter reaching litis contestation, the matter was referred for trial before the Honourable Mr. Justice Dube for trial on the 2nd of June 2025.
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> AND WHEAREAS, the parties agreed that the facts of the matter are, largely, common cause, they agreed to proceed with the matter as a stated case per Rule 52 of the High Court Rules, 2021.
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> NOW THEREFORE, the parties consider the facts below to be common cause as between the dispute between the parties thereby obviating the need for a trial:

1. Defendant entered into a lease agreement with one Edwin Eric Schwegmann on 19th September 1997 valid for a 2 year period (page 58 — 63 of merged record).
2. In terms of clause 30 of the lease agreement aforementioned, the Defendant was given a right of first refusal to purchase the premises should they become available for sale.
3. On 22nd September 1999, the Defendant entered into a new lease agreement with the Schwegmann Family Trust (page 64 — 69 of merged record). This lease agreement, which did not contain a written right of first refusal, expired in the year 2002 and Defendant became a statutory tenant.
4. According to the Defendant, he was given a verbal assurance that the right of first refusal was still available to the Defendant notwithstanding the new lease agreement with the Schwegmann Family Trust (See counter Plaintiff's replication at page 48 — 49. See also page 16 of merged record).
5. In the intervening period, the property was first transferred to the Schwegmann Family Trust and subsequently to the Plaintiff (See deed of transfer 2040/2003 at page 21 — 24).

The property in issue is known as Stand No. 6435A Bulawayo Township also known as No. 9 Welbeck Road, Thorngrove, Bulawayo and is currently held by the Plaintiff as aforementioned.

6. According to the Plaintiff and 2nd Counter Defendant, the Plaintiff's claim for a right of first refusal prescribed on transfer of the property from Edwin Eric Schwegmann to the 2m

Counter Defendant. (See 1st and 2"® Counter Defendants' Plea at pages 30 — 31 of merged record).

7. The Defendant learnt of the transfer of the property from the 2nd Counter Defendant to the Plaintiff upon receipt of the Summons in the present matter and the supply of further particulars on request by the Defendant.

8. According to the Schwegmann Family Trust Deed, the same was established on the 29th October 1992 and registered with the Registrar of Deeds on 2nd December 1992.

9. The property was transferred from the late Edwin Eric Schwegmann into the names of the 2nd Counter Defendant on 10th February 2000 after the death of the said Edwin Eric Schwegmann in terms of the latter's will.

10. On 30th September 2010, the Plaintiff wrote a letter to the Defendant giving Defendant 60 days notice to vacate the premises (see the letter at page 76 of the merged record).

11. The Defendant received the notice above mentioned in the third week of October 2010 (See paragraph 8.2 of Defendant's Affidavit at page 14 of the merged record).

12. When the Defendant did not move out on 31st December 2010, the Plaintiff instituted the present action.

13. After the pleadings had been closed in the present action, the Plaintiff and /or 2nd Counter Defendant subsequently offered the Defendant the right of first refusal (see letter dated 30th July 2014 at page 93 of merged record).

14. The Defendant through its legal practitioner's letter dated 28!" August 2014 duly accepted the offer but sought clarification (see letter dated 28" August 2014 at page 115 of merged record).

15. The parties reached a deadlock and the Plaintiff then instituted a Court Application under Case No. HC 2474/2014, which the Defendant opposed (see pages 84 — 120 of merged record). The matter was argued in 2015 but the Plaintiff was not granted the relief it sought.

16. The Plaintiff has subsequently pressed ahead with the present action.

ISSUES FOR DETERMINATION

1. Whether the notice given to the Defendant was adequate.
2. Whether or not the Plaintiff's claim for eviction of the Defendant should be granted.
3. Whether the Defendant's right of right refusal lapsed on transfer of the property from the late Edwin Eric Schwegmann to the Schwegmann Family Trust.
4. Whether in respect of either the transfer to the Schwegmann Family Trust or to the Plaintiff, the Defendant's claim of a right of first refusal has prescribed.
5. Whether the Plaintiff's / 2nd Counter Defendant's offer of the right of first refusal on 30th July 2014 compromised the present action and if so, whether the Plaintiff is entitled to any relief.
6. Whether Defendant's acceptance as per the letter dated 28th August 2014 was sufficient fulfilment of the right of first refusal.
7. If the offer of the right of first refusal dated 30th July 2014 and the acceptance thereof dated 28th August 2014 was sufficient to complete the right of first refusal, whether the rental payments made by the Defendant to the Plaintiff should be taken into account with respect to the payment of the purchase price.
8. If the rental payments should not be taken into account, then what should be the terms of payment of the purchase price?"

I must express my indebtedness to both counsel for having condensed over 14 years of highly contested litigation into this concise summary. They duly presented impassioned oral arguments.

Arguments for the Plaintiff.

Counsel Ndlovu opened his argument by remarking that the facts of this matter are now relevant. The plaintiff is indisputably the holder of title to the property in dispute. He holds such title per deed of Title dated on the 29th August 2003. There is no doubt that plaintiff is the owner. Registration of title is not a mere matter of form but is a matter of substance. He argued that unless set aside by a competent court of law the holder of such title has conclusive proof that ownership vets in it. For that reason, the owner of property has a right to vindicate that particular property from whom so ever possesses it. He cited the matters of *Takapfuma v*

Takapfuma 1994(2) ZLR 103 (S), *Machiva v CBZ & Anor* 2000 (1) ZLR 302 and *Chetty v Naidoo* 1974(3) SA 13 @ para A.

He argued further that the claim in *casu* is that of eviction, in other words the owner seeks to vindicate his property against the current occupier. According to counsel the question that the defendant ought to ask is:

"By what right is the Defendant holding over onto the property?"

He contends that the answer thereto is that defendant does not hold any single right to continue holding onto the disputed property from 2010 to date. Further that the argument that the notice period given can not be true when defendant knew from 1st October 2010 that plaintiff wants its property. He argues that defendant can litigate for the past 15 years plus and still claim that the notice given to it is insufficient. He contends that the mischief behind the provisions of the Commercial Premises (Lease Control) Act, [*Chapter 14:04*] is to prevent arbitrary eviction of tenants from commercial premises and disrupt industry and the fiscus. In the circumstances of the present matter, he argues that the defendant had ample time to look for alternative commercial premises.

He argued further that it is not for the defendant to want to know what the plaintiff wants to use the property for. He described the defendant's defences as "fallacious and spurious".

He argued further that the plaintiff herein is not privy to the previous contracts that gave the defendant a right of first refusal. The first contract that expressly gave that right was for a duration of two years running from 1st September 1997 to 31 August 1999. When it lapsed the right of first refusal lapsed with it. When a renewal was made on the 1st October 1999 to the 31st December 2002, between defendant and the Schwegmann Family Trust, such clause was left out. If defendant claims that there were verbal assurances by Mr Schwegmann there is no evidence of such before court.

Further, that in any event what was extended, if it is proven, were personal rights which lapsed at the death of the grantor and the grantee. In other words that right could only be asserted as against the person who offered it. Once accepted that plaintiff is not privy to such contracts then it follows that defendant has no right to enforce as against the plaintiff. To drive

his point home counsel Ndlovu referred the court to the matter of *Eastview Garden Residents Association v ZIMRE* 2002 (2) ZLR 543 (SC)

Counsel further argued that the defendant can not now seek to tie down the plaintiff to its offer made on the 30th July 2014. He argued that despite the plaintiff offering the property to the defendant at the price it purchased it from The Schwegmann Family Trust, the offer only remained open for 30 days. He argued that an offer for first refusal is always time sensitive, by failing to exercise that right to purchase the defendant cannot seek to enforce it after the 30th August 2014. He argued that to date, there is no doubt that such offer has since long lapsed.

Counsel took the argument a notch further and argued that in any event if the last date of the offer is agreed to be the 30th July 2014, it has still fallen prey to prescription per sec 2 as read with sec 15 of the Prescription Act [*Chapter 8:11*]. He argued that a declaration of rights is prone to prescription.

Lastly, counsel argued that should the rentals paid to date be taken as payments towards the purchase price? He argued that there is an order per my Sister Judge KABASA J speaking to the quantification of monthly rentals to be paid to the plaintiff pending finalisation of this matter. He claims that in compliance with that order plaintiff approached property evaluators namely John Poccock and Knight Frank to carry out such valuations, but the defendant refused to take part. He submitted that to date, rentals were not being paid instead it is plaintiff who continues to pay utility bills. *Counsel Mazibuko* for the defendant objected towards the correctness of the assertions made by counsel. He requested to be given time to collate all payments made so far and bring proof to court to set the record straight. I allowed such adjournment as payment of rentals would resolve the dispute of whether the defendant is a statutory tenant or not and if so, what would be the implications on the final arguments. The matter was postponed to the 13th June 2025 for the filing of proof of rental payments and continuation of arguments.

Upon resumption, *Counsel Ndlovu* argued that he holds instructions to the effect that defendant last paid rentals in January 2023. He acknowledged having gone through the documents submitted and found them to be irrelevant. He argued that the right of first refusal is still none-existent. If the court finds it to exist and enforceable then the defendant was and still is not exempted for rental payments for the period he had remained in occupation of the

plaintiff's premises. For that reason, such should not be taken as payment towards the purchase price.

He concluded by arguing that a right of first refusal if not expressly provided for can not be implied. He referred to the matters of *Nerger Properties Pvt Ltd v R. Chitrin & Company (Pvt) Ltd* SC 47-06, *Makoshori v Nyamushamba* SC9-06 and *Soma Properties v Wilburg* 1948 (3) SA 647 (SC).

Opposition by the Defendant

Counsel Mazibuko narrowed his arguments to the following sub-headings.

a) Whether the notice given was sufficient.
b) Should the Notice have been valid, does the Plaintiff have good and sufficient grounds to require the premises?
c) Whether Defendant's right of first refusal lapsed.
d) If rentals paid are not taken into account, then what would be the position to be ordered by the court?

In expanding these points, *Mr Mazibuko* argued as follows:

Is the Notice given Sufficient?

He submitted that it is common cause that defendant is a statutory tenant in respect of the premises per para 3 of the statement of agreed facts. For that reason he argued that plaintiff is obliged to comply with the Commercial Premises Rent Regulations SI 676 of 1983. He argues that at sec 22 and 23 it imposes a duty on the plaintiff as the Lessor to give 3 months' notice.

He referred to pages 76-77 of the merged record being a letter sent to the defendant by plaintiff purportedly giving three months' notice to vacate its premises. *Mr Mazibuko* argued that the letter gives the defendant 60 days' notice as opposed to the requisite 3 months. `He contended therefore that based on the notice it is both insufficient and invalid.

He argued further that under common law, there was supposed to be reasonable notice however in *casu* there is actual legislation and it specifies 3 months' notice. For that reason he concluded that there was no compliance with section 24 of the Rent Regulations. The notice is invalid for want of compliance with a mandatory statutory provision.

Mr Mazibuko argued further that the notice was received on the 3rd week of October 2010 requiring the defendant to exit by the 31st December 2010. In effect, that period was not 3 months. He submitted that section 33 (6) © of the Interpretation Act [*Chapter 1.01*] provides that where time is reckoned, as a month that shall be construed to mean a calendar month. A calendar month begins on the 1st day of that month to the last month. In *casu* even though the notice spoke of being effective from the 1st October 2010, it was not delivered upon the Defendant until the 3rd week of October. He argued that the calendar month could only start running by the 1st of November 2010. He referred to the matter of *Tiopaiz v Bulawayo Municipality* 1923 AD 317, *Pasi and Anor v T Investments Pvt Ltd* HH271-18. He prayed that based on the insufficient notice plaintiff's claim should fail.

Should the notice be found to be valid, does the Plaintiff have good and sufficient grounds to require the premises?

Counsel argued that in its papers plaintiff claims that it requires the premises to house its own earth moving equipment. Before court there is no evidence to substantiate that. The only proof appears to be a copy of an advert with pictures of earth moving equipment filed under case number HC2547/2010. Further that the advert is in the name of QualiProd Earthmoving Equipment which is different from the plaintiff. It is just a flier with a price list and does not show that plaintiff is actually the owner of equipment appearing on the document. On that ground he averred that such proof is not enough and plaintiff's claim should fail.

Whether Defendant's Right of First -Refusal Lapsed?

Under this *Mr Mazibuko* argued that such right can be verbal. In *casu* the right was first in writing, when that lapsed it was then given verbally by Schwegmann. He argued that by the time of signing the second lease with The Schwegmann Family Trust, Mr Schwegmann still owned the property. He had not yet transferred it into the trust. For that reason, he had the authority to extend the right of first refusal. When the property was transferred into the Trust's name it was not a sale, but in line with Mr Schwegmann's last will and testament. *Mr Mazibuko* contends that such act did not invalidate the right of first refusal given that Mr Schwegmann himself had given defendant his assurances.

Whether plaintiff's subsequent offer affected defendant's right of First Refusal?

Counsel argues that at page 23 of the record, plaintiff makes an offer, and at page 115 of the record last paragraph, the defendant accepts such offer. The offer was on the 30th July, and acceptance was on the 28th August of the same year. The 30-day validity period of the offer is said to still be open. Further, that by so doing, plaintiff compromised its claim and can not be entitled to judgment in its favour in respect of this matter. It was argued that the offer having been accepted, what set the parties apart were the terms of payment. The defendant proposed that all United States Dollar payments be accepted as a reduction of the total purchase price. His logic was that had the offer been made at the time plaintiff bought it, it would not have been liable to pay rentals. For that reason such rentals should be regarded as payment of the purchase price. As *Mr Mazibuko* puts it that 'inflamed the ire" of plaintiff's erstwhile counsel. It was argued that as soon as defendant accepted the offer, plaintiff's claim was compromised, the parties having entered into a new contractual relationship. It was argued that a compromise allows the parties to settle a dispute outside court separate from the original *causa.* It extinguishes the original dispute which then becomes *res-judicata*, *Mr Mazibuko* concluded.

Mr Mazibuko argued that rentals paid so far should be taken into account as payment towards the purchase price, if not then the court should make an appropriate order regarding such payments, *vis a vis* the purchase price.

Analysis of the facts

It is not disputed that the plaintiff is the registered owner of the property in dispute. Its current occupation is without its consent. Defendant is holding onto the premise by virtue of his counter claim based to a right of first refusal. I shall now attempt to answer the questions raised by both counsel not necessarily in their order of presentation viz;

A. Did the right of first refusal survive beyond the mortal lives of its makers?

I am of the respectful view that such right is a personal right and as contended by the plaintiff it died with the death of the parties who made it. Edwin Eric Schwegmann initially made such offer to Mambiro Senior, representing Mambiro Fibre & Timber Industries. It was made in writing in their 19th September 1997 lease agreement. Such agreement lapsed on the 31st August 1999 and so were the personal rights flowing from it.

On the second agreement of the 22nd September 1999 between The Schwegmann Family Trust and Senior Mambiro, this clause was excluded. Could that have been an error? Unfortunately, its makers, being representatives of each legal persona, are both deceased and can not testify to their individual state of mind at the time of executing such document. There is no evidence before this court from which it can be inferred.

Defendant argues that there were verbal assurances from Mr Schwegmann of the perpetuation of the said right. However, it is just counsel's word. There is no shred of evidence to back it up. This court is unable to arrive at such a conclusion.

At the time the property was sold and transferred to the plaintiff, I am of the view that there were no personal rights attaching to the property to talk about. I accept as correct the argument that a personal right can not be inherited. It can not form part of the inventory nor distribution account of a deceased estate. It is not transferable. Having arrived at such conclusion, it is pointless to even talk about prescription. Such right never existed between plaintiff and the defendant. It can't even be exercised against The Schwegmann Family Trust as there is no evidence that it ever survived beyond the life time of its makers.

B. Can a right of first refusal be a defence to a claim of *rei vindicatio*?

Defendant refuses to hand back those premises despite both verbal and written demand. The property is registered in the name of the plaintiff. Plaintiff is without dispute the owner. The plaintiff avers that being weary of litigation, it made a fresh offer to sell the premises to the defendant. The defendant did not accept the offer. He instead argued that the plaintiff is not the rightful person to make the offer as the defendant still held the firm belief that the sale and subsequent transfer of title to plaintiff was null and void. As appearing on the papers, the offer letter was penned by plaintiff's erstwhile legal practitioners on behalf of both the plaintiff and The Schwegmann Family Trust. Plaintiff offered to sell the property to the defendant for a sum of USD48 500.00 which is the sum it bought for. Defendant sought to attach conditions to the acceptance of the offer which plaintiff rejected. For example at page 115, defendant's counsel, while stating the "it unequivocally accepted the offer in principle" it still expressed the belief that plaintiff was not the rightful candidate to make the offer. Further it argued that no valid offer can be made when litigation remains open. It placed a counter proposal that litigation should first be withdrawn then an offer made. The defendant clearly spun the offer. It cannot be said that there was a new contract separate from the original *causa* as there was no

meeting of the minds. The offer was valid for 30 days. By the 28th day the defendant was still making counter proposals and even questioning the existence of such time lines. Resultantly, the offer lapsed. As things stand the right of first refusal in whatever form is non-existent.

Defendant therefore has no defence, to a claim of *rei vindicatio*.

C. **Is defendant a Statutory Tenant**?

I am of the respectful view that defendant was a tenant of Edwin Eric Schwegmann and the Schwegmann Family Trust. As soon as the property was sold, plaintiff gave defendant notice to vacate the premise.

At the time of the notice defendant argued and still argues to date that it was never a tenant of the plaintiff. It can therefore not be a statutory tenant if the owner of the commercial property lost such property. It submits to logic therefore that the defendant is not a statutory tenant but rather an unlawful occupier. The status of a statutory tenant emanates from a valid lease agreement with clearly agreed monthly rentals. It is only after the lease agreement lapses and is not renewed that tacitly it is implied to be renewed on the same terms as the original. In *casu* there was no original lease to talk about between plaintiff and the defendant. He can not be a tenant. I am of the respectful view that he in fact deserves no notice under SI 676 of 1983. The common law then becomes relevant. From October of 2010, reasonable notice had been given. Defendant cannot claim to be arbitrarily ejected. Whatever it paid can merely be offset as unlawfully holding over damages as opposed to legitimate rentals. In no way can that be said to be a purchase price as none was ever agreed upon.

THE LAW

In the matter of *ZFC v Tapiwa Joel Furusa* SC15-18, it was held as follows:

> "Compromise, or transactio, is the settlement by agreement of disputed obligations, whether contractual or otherwise. If any offer to settle in particular terms is not accepted, the offeree cannot treat an inseparable part of the offer and sue on it. Even a criminal charge may be settled by the process known as plea bargaining and the resulting compromise will be enforceable. It is a form of novation differing from the ordinary novation in that the obligations novated by the compromise must previously have been disputed or uncertain, the essence of the compromise being the final settlement of the dispute or uncertainty."

In casu the offer was not accepted as discussed above. It is therefore impermissible for the defendant to cherry pick a few lines from the broader context of their exchange in correspondences and claim that it accepted the offer "unequivocally" on some part of the exchange.

In the matter of *Savanhu v Hwange Colliery Company* SC 8-15, it was held as follows:

> "The action *rei vindicatio* is an action brought by an owner of property to recover it from any person who retains possession of it without his consent. It derives from the principle that an owner cannot be deprived of his property without his consent. As it was put in *Chetty v Naidoo* 1974 3 SA 13 (A):
>
> It is inherent in the nature of ownership that possession of the res should normally be with the owner, and it follows that no other person may withhold it from the owner unless he is vested with some right enforceable against the owner (e.g a right of retention or a contractual right)."

In casu all parties agree that plaintiff was not privy to any prior contractual relations with the Mambiro Senior, his Company nor the present defendant. For that reason the defendant cannot speak of any contractual right of retention, and none exists.

In the matter of *Residents of Joe Slovo Community, Western Cape v Thubelisha Homes and Others* 2010(3) SA 454 (CC) (10 June 2009) it was held that;

"There are basically four main defences to a claim of *rei vindicatio,* which are:

(i) That the applicant is not the owner of the property in question.
(ii) That the property in question no longer exists and can no longer be identified
(iii) That the respondent's possession of such property is lawful
(iv) That the respondent is no longer in physical control of the property."

In the present case, all parties agree that the plaintiff is the registered owner of the property in question. Such property still exists. The defendant's continued occupation of such premises without consent of the owner is unlawful. Defendant is still in occupation meaning the property exists and he has physical control over it; he has no lawful excuse to continue holding onto such property.

In the foregoing, I make the following disposition.

Disposition

1. The notice given to the defendant on the 1st October 2010 is valid.
2. The defendant and all those claiming through it be and are hereby ordered to vacate No. 9 Welbeck Road, Thorngrove, Bulawayo, within 5 days of the granting of this order,

failing which the Deputy Sheriff, Bulawayo, be and is hereby ordered to evict the defendant and all those claiming through it from the above mentioned premises.

3. The defendant to pay the costs of this suit.

Cheda and Cheda plaintiff's legal practitioners
Calderwoods, Hennie Bryce and Partners, defendant's legal practitioners